

What it takes to operate 50+TechBridge as a *WIOA-qualified nonprofit*

WIOA-eligible on a brochure is not the same as being on a state's Eligible Training Provider List (ETPL). 501(c)(3) status is not the same as a career-school license. Texas MBE is a for-profit credential. The working model is two entities: keep Learn More Technologies LLC (MBE + invoices) and add a Texas nonprofit sidecar (grants + free seats). Do not convert the LLC.

DO NOT CONVERT THE LLC

Keep MBE on LMT

Texas HUB / MBE / NMSDC paths are for-profit. A 501(c)(3) sidecar funds free seats. The LLC still invoices institutions.

WIOA "QUALIFIED" MEANS

ETPL or a board contract

ITA money requires statewide ETPL. Boards can also buy cohort / incumbent-worker training without an ITA.

FIRST TWO GATES

TWC + Capital Area

Texas career-school license or written TWC exemption, then Workforce Solutions Capital Area → EDvera → statewide ETPL.

Read this first. Compiled from public agency pages (TWC, IRS, Texas SOS / Comptroller, Mass.gov DOL / AGO / MDCS). Fees, forms, and board rules change. Confirm with a Texas nonprofit attorney, Massachusetts counsel if you open there, and the local workforce board before filing. Locked public language only: 9 in-person locations in central Texas; 6 Austin Public Library branches; AARP-affiliated senior centers; Foundation Communities veterans program; WIOA-eligible; MBE-certified.

2. Recommended legal structure — do this, not a conversion

Entity A — keep. Learn More Technologies LLC dba 50+TechBridge. For-profit. Holds Texas MBE. Invoices employers, libraries, boards, and keynotes. Signs site-license and facilitator contracts. Applies to Texas ETPL as the training provider unless counsel puts the school license on the nonprofit. Pick one provider of record.

Entity B — add. New Texas nonprofit corporation (distinct legal name, e.g. 50+TechBridge Foundation / Digital Pioneer Institute — lawyer confirms). Files IRS Form 1023. Receives grants. Buys free seats from the LLC or scholarships learners. Never the MBE vehicle.

Name collision. The LLC already uses 50+TechBridge as a DBA. Do not put the identical assumed name on the charity without counsel. One brand, two legal names, a written license/services agreement. If the IRS letter is slow, a fiscal sponsor can receive grants now — the sponsor is the legal grantee.

1. What you already have vs. what “nonprofit WIOA” actually requires

Items marked **stated** are on materials. “WIOA-eligible” copy is not an ETPL listing.

ITEM	STATUS	WHY IT MATTERS
Learn More Technologies LLC + DBA 50+TechBridge	HAVE	Operating company. Keep this. Do not dissolve or convert it into the charity.
Texas MBE (stated active)	HAVE	For-profit path. Converting the LLC typically kills MBE / HUB / NMSDC eligibility.
NAICS 611420 / 611430 / 624310	HAVE	Computer training, professional development, vocational rehab-adjacent. Keep on SAM and the capability statement.
“WIOA-eligible” on materials	STATED	Marketing alignment. Not ETPL. Boards will ask for the listing, not the brochure line.
9-location central Texas footprint (6 APL, AARP-affiliated senior centers, Foundation Communities veterans)	HAVE	Past-performance story. Locked language only. Get site MOUs / letters on partner letterhead.
Facilitator kit, spine, sign-in, pre/post surveys	HAVE	Attendance + outcomes packet boards expect. Keep collecting cohort-level completion data now.
Nexus 2024 delivered; Elevate submitted 8/13/26	HAVE / IN REVIEW	Grant fuel, not ETPL. Restricted funds. Do not treat as operating profit.
501(c)(3)	IN PROCESS	Need a <i>separate</i> Texas nonprofit corporation + IRS determination letter. The LLC cannot “become” the charity without losing MBE.
SAM.gov + Unique Entity ID (UEI)	CONFIRM / NEED	Required for most federal awards. Nonprofit and LLC each need their own UEI if both will take federal money.
Texas ETPL (TWC statewide list)	NEED	This is what makes ITA / WIOA Title I tuition payable to the provider.
TWC Career Schools Certificate of Approval or written exemption	NEED	Gate in front of Texas ETPL. 501(c)(3) does not auto-exempt. TWC decides.
Massachusetts foreign qualify + AG charity + MassHire ETPL	NEED IF IN MA	Do not fundraise or teach in MA until SOS + AGO are done. ETPL is a separate MassHire / TrainingPro process.
Named second facilitator, unified ITA-range price list, capability statement, past-performance one-pager	NEED	Sales + board packet. Cohort \$7.5–15k and annual \$25–60k must sit inside local ITA caps once ETPL is live.

3. Federal layer (both states)

ENTITY + TAX-EXEMPT

CREDENTIAL	WHO / FORM	NOTES
Employer Identification Number	IRS EIN (online)	Nonprofit gets its own EIN. Do not reuse the LLC EIN.
501(c)(3) recognition	IRS Form 1023 (or 1023-EZ if eligible)	User fee (commonly \$600 / \$275). Purpose, dissolution, and inurement clauses must already be in the Texas certificate + bylaws. Determination letter is the document everyone else wants.
Annual IRS information return	Form 990 / 990-EZ / 990-N	Due each year. Three missed years = automatic revocation.
Public charity tests	Board + fundraising mix	Need a real board (Texas minimum 3 directors). Independent majority is the practical 501(c)(3) standard. Conflict-of-interest policy: Brian cannot be the sole director who also invoices the charity from the LLC without a written related-party policy.

FEDERAL AWARDS + WIOA CIVIL RIGHTS

CREDENTIAL	WHO / FORM	NOTES
SAM.gov registration + UEI	sam.gov	Free. Annual renewal. Entity must not be debarred (check SAM exclusions). Needed before most federal pass-through.
WIOA Section 188 EO / nondiscrimination	USDOL CRC + state EO officer	Written EO policy, grievance procedure, "Equal Opportunity is the Law" notice, reasonable accommodation process, data on race/sex/disability as the board requires. 29 CFR Part 38.
ADA / Section 504 accessibility	Program + venues	In-person sites (libraries, senior centers) need accessible rooms and materials. Digital materials need a basic accessibility standard.
Performance data	WIOA Sec. 116 / state ETPL rules	Completion, credential attainment, employment / entered employment. Start logging every cohort now even before ETPL. New programs can often list with an explanation; they cannot stay listed with empty outcomes.
Occupational alignment	Local Targeted Occupation List	Design gate. Generic "AI literacy" may not ITA-qualify. Frame the paid WIOA SKU as occupational skills toward a recognized credential and a board target occupation (IT / office / digital support / job-search + occupational skills). Fallback: Title I contracted / incumbent-worker training, or Title II Adult Education & Literacy combined with occupational skills (20 CFR §680.350).

Who is "WIOA-qualified"? The *learner* is determined eligible by the career center. The *provider* is qualified when (a) on the state ETPL for ITAs, or (b) under a board contract for cohort / OJT / incumbent-worker / customized training. You cannot self-certify either one.

4. Texas

A. NONPROFIT CORPORATION (ENTITY B)

LICENSE / FILING	AGENCY + FORM	HAVE / NEED
Certificate of Formation — Nonprofit Corporation	Texas SOS Form 202 (~\$25)	NEED Purpose + 501(c)(3) language + dissolution clause. Minimum 3 directors. Registered agent in Texas.
Bylaws + COI, whistleblower, retention, related-party (LLC) policy	Board adopts	NEED IRS and grantmakers will ask — the founder also owns the LLC.
Assumed name (if the charity uses a public brand)	County assumed-name + SOS as needed	NEED IF USED Do not clone the LLC's 50+TechBridge DBA without counsel.
Nonprofit periodic report	Texas SOS Form 802 (when SOS requests; ≤ once / 4 years)	CALENDAR Missing it can terminate the corporation. Separate from IRS 990.
State tax exemption (sales + franchise)	Comptroller AP-204 after IRS letter	AFTER IRS 501(c)(3) is federal only until AP-204 is approved. Then Form 01-339 on purchases.
Charitable solicitation registration	Texas AG	USUALLY N/A IN TX City permits may still apply. MA and most other states require registration before you solicit.

B. CAREER SCHOOL LICENSE — THE TEXAS ETPL GATE

Texas Education Code Chapter 132: almost all career training requires a TWC **Certificate of Approval** unless TWC grants a written exemption. A 501(c)(3) letter is evidence for an exemption request; it is not the exemption. Boards will not send you to statewide ETPL without the license or the TWC exemption letter. TWC Career Schools; 40 TAC §840.10

PATH	WHAT YOU FILE	WHEN TO USE IT
Exemption request	TWC Career Schools exemption packet (historically PS-017 / CSC-017) + IRS letter + proof the school and the nonprofit are the same operation	First ask. TWC answers in writing. No letter = not exempt. Boards often cite ~4–6 weeks if complete — do not count on that.
Certificate of Approval	Full new-school application: financials, catalog, instructors, refund policy, surety / financial stability as TWC requires	If TWC says you are not exempt. This is a real school license. Budget months, not weeks.

C. WIOA / ETPL IN TEXAS

1. Call **Workforce Solutions Capital Area** (Austin local board) as the first board of record.
2. Board issues EDvera access. Upload provider, campus, and program files.
3. Attach TWC Certificate of Approval *or* TWC exemption letter.
4. Map each paid program to a SOC / target occupation. Attach an employer support letter or employer advisory committee.
5. Submit the **Student Data Report** (all students, not only WIOA). New programs: file community-cohort data and say the course is new where data are thin.
6. Local board recommends → TWC statewide **ETPL**. Listing ≠ referrals. ITA caps are local (often roughly \$7k–\$9k — confirm with Capital Area before you print a price).

D. TEXAS EXTRAS PEOPLE SKIP

- **Workers' compensation** — optional for many private Texas employers; venues, boards, and grants will require a certificate if you have any employee.
- **GL + additional insured** — libraries and senior centers require COI. Add professional / educators' liability and cyber / PII if you store WIOA data.
- **Unemployment tax** — TWC UI account if you have employees. **CMBL / HUB** stays on the LLC. **Site MOUs** must match ETPL campus addresses (APL, AARP-affiliated centers, Foundation Communities).

5. Massachusetts

Do not treat Massachusetts as a brochure line. The moment you solicit donations, hire, lease, or teach in MA, clocks start. A foreign (Texas) charity must register with the MA Secretary of the Commonwealth **within 10 days of commencing business** and with the Attorney General **before** charitable work or fundraising. Mass.gov AGO charities FAQ

A. FOREIGN NONPROFIT + CHARITY REGISTRATION

LICENSE / FILING	AGENCY	TRIGGER
Foreign corporation qualification	MA SOS Corporations Division	Within 10 days of commencing business. Certificate of registration + Texas certificate of legal existence + fee.
Public charity initial registration	AGO Charity Portal	Before charitable activity or solicitation. Articles, bylaws, board list, IRS letter. AGO assigns an AG Number.
Certificate of Solicitation	AGO (Schedule A-2 if needed before first Form PC)	Before asking anyone in MA for money, including online if MA residents are targeted.
Annual Form PC + IRS 990	AGO Charity Portal	Due 4.5 months after fiscal year end. Fee scales with gross support. CPA audit/review at AGO thresholds.
DOR Certificate of Good Standing	MA Department of Revenue	Often required for ETPL, licensing, and state vendor setup.
Workers' compensation	MA DIA	Generally required if you have MA employees — even a part-time facilitator.
Unemployment + PFML if thresholds met	MA DUA / DFML	If you have MA wages.
COMMBUYS / state vendor code	MA OSD	If you want state contracts, not only WIOA ITAs.

B. PRIVATE OCCUPATIONAL SCHOOL LICENSE (G.L. C. 112 §263)

Massachusetts licenses private post-secondary occupational schools — for-profit *and* nonprofit. **Step 1 is always the License Determination** with DOL (Office of Private Occupational School Education).

- **If DOL says you must be licensed:** OSA financial / surety review → ePLACE → nonprofit fee **\$1,250** (for-profit \$2,500) → surety bond → enrollment agreement (G.L. c. 255 §13K) → catalog / policies → instructor CORI + SORI → building and fire inspection if you have a MA facility → DOL site visit. Incomplete applications sit 9 months, then die.
- **Distance / online exemption:** typically only if you have **no place of business in the Commonwealth**. Flying in to teach at a Boston library, senior center, or MassHire site is in-person MA delivery — get the License Determination in writing first.
- Corporations not formed as schools may need to amend articles with SOS to include educational / school purposes.

C. MASSHIRE ETPL (TRAININGPRO)

1. Register in **TrainingPro** (MDCS). Provider review is state; **course** review is the local MassHire Workforce Board.
2. Applications / renewals due **before June 1** each year. Miss it and you wait a cycle.
3. **New providers** (and Trade / Section 30) are told to include course performance data from the past two years. If the course is new, say so and start tracking immediately. Confirm current MDCS minimums (completion often ~70%) before you apply.
4. Same occupational-alignment problem as Texas: a job, a credential, and a price — not a community AI workshop.

Practical sequence for MA: Do not open a Massachusetts site until Texas ETPL is live and one facilitator exists. Then: SOS foreign qualify → AGO charity + solicitation certificate → DOL License Determination → TrainingPro. Fundraising emails to MA donors without the AGO certificate is the fastest way to get a problem.

6. Everything else you need (operations, not just licenses)

ITEM	STATUS	WHY
Written services / IP license between LLC and nonprofit	NEED	Who owns the spine, Barb, AGENTIC50, websites. Who invoices. IRS related-party.
Separate bank accounts, bookkeeping, and board minutes	NEED	Commingling LLC and charity is how 501(c)(3)s get revoked and MBE files get messy.
D&O + GL + professional + cyber insurance	NEED	Directors will not serve; venues will not host; WIOA PII is a breach target.
Named facilitator (even part-time) + onboarding file	NEED	Month-18 hard pivot if still 100% Brian-delivered.
Unified price list inside ITA caps	NEED	90-minute pilot (no public \$ until unified); cohort \$7.5–15k; annual \$25–60k; keynote floor \$5k.
Capability statement + past-performance one-pager	NEED	Locked proof only. Do not use 347 / 264+ / ~100.
Recognized credential design	PARTIAL	Map the program certificate to something boards count, or stack IC3 / Google / CompTIA ITF+ as the WIOA fork.
Employer advisory committee + 1–2 support letters	NEED	Texas EDvera / TWC expect employer demand, not only library goodwill.
WIOA PII / data-sharing protocol + designated EO officer	NEED	No SSNs on paper sign-in. Section 188 — Brian can be designated EO officer in writing until there is staff.
Background checks · enrollment agreement / catalog / refund policy	NEED IF SCHOOL	MA occupational school: CORI/SORI required. TWC and MA DOL treat catalog/refund as consumer protection.

7. Suggested order — do not file Massachusetts first

- This week:** Confirm SAM.gov / UEI on the LLC. Confirm the exact name on the Texas MBE certificate. Start a cohort outcomes spreadsheet from existing sign-in/surveys.
- Counsel call:** Dual-entity plan, charity name, related-party agreement, which entity is the ETPL provider of record.
- Form Entity B:** Texas SOS Form 202 → EIN → bylaws/policies → board of 3 → IRS Form 1023. Fiscal sponsor only if a grant cannot wait.
- TWC Career Schools:** Exemption request (or Certificate of Approval if they say no), before promising boards a listing date.
- Workforce Solutions Capital Area:** EDvera packet, employer letter, Student Data Report, ITA-range prices → statewide ETPL.
- Comptroller AP-204** after the IRS letter. Charity bank account. Seat-purchase agreement: charity buys free seats from the LLC.
- Massachusetts (later):** SOS foreign qualify → AGO Charity Portal + Certificate of Solicitation → DOL License Determination → TrainingPro by the June 1 cycle.

Bottom line: You already have the operating company, the MBE, the footprint, and the teaching system. You do *not* yet have a charity, a TWC school determination, or an ETPL listing. Those three — plus SAM.gov confirmed — are the licenses that turn “WIOA-eligible” copy into money. Keep the LLC. Add the nonprofit. Do not convert.

PRIMARY SOURCES TO RE-CHECK BEFORE FILING

- Texas SOS Form 202 and Form 802 — sos.state.tx.us · Comptroller AP-204 — comptroller.texas.gov/taxes/exempt
- TWC Career Schools certificates and exemptions — twc.texas.gov · Eligible Training Providers via Workforce Solutions Capital Area, then statewide ETPL
- IRS Form 1023 / 1023-EZ and SAM.gov · USDOL WIOA Section 188 / 29 CFR Part 38
- Mass.gov: AGO charities FAQ; DOL “Apply for an occupational school license”; MDCS “Requirements to qualify on Mass ETPL” / TrainingPro